

FIRST ENDORSEMENT

Acting Executive Director Matthew Kadushin, Civilian Complaint Review Board to Deputy Commissioner Amy Litwin, Department Advocate's Office, September 2, 2022. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23484 against Police Officer Rahul Dass, Tax Registry No. 958475. This case was conferenced on August 11, 2022, before Deputy Commissioner of Trials Rosemarie Maldonado, who approved the negotiated penalty of the forfeiture of eleven (11) vacation days, after a guilty plea to Specifications One (1) and Two (2).

Matthew Kadushin

Matthew Kadushin
Acting Executive Director
New York City Civilian Complaint Review Board





DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2021-23484
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, DASS	FIRST RAHUL	M.I.	COMMAND 007 PRECINCT
SHIELD NO. 6304	TAX REGISTRY NO. 958475	SOCIAL SECURITY NO.		DATE APPOINTED 07/08/2015
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Rahul Dass, on or about August 19, 2019, at approximately 0210 hours, while assigned to 007 PCT and on duty, in the vicinity of § 87(2)(b) New York County, was discourteous, in that he used profanities saying, in sum and substance, "you disgusting fucking [...]" to § 87(2)(b) without police necessity.	PLEADED GUILTY	VACATION DAYS 11.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Rahul Dass, on or about August 19, 2019, at approximately 0210 hours, while assigned to 007 PCT and on duty, in the vicinity of § 87(2)(b) New York County, made remarks to § 87(2)(b) based upon gender calling her, in sum and substance, "[...]bitch."	PLEADED GUILTY	


FIRST DEPUTY COMMISSIONER 1/30/23
DATE

POLICE COMMISSIONER'S APPROVAL

- ☐ Approved
☒ Disapproved
☐ Other Action (Describe)


POLICE COMMISSIONER 5/31/23
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 10, 2023

Re: CCRB Case No. 202001927 (Incident Date: August 19, 2019) involving Police Officer
Rahul Dass, Tax No. 958475 (DADS No. 2021-23484)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Dass. The Police Commissioner has determined that the actions of Police Officer Dass do not warrant the imposition of the proposed penalty.

Police Officer Dass was assigned to transport a belligerent individual who was arrested for assault. While being placed in the back of a police vehicle, the arrested individual grabbed and held on to Police Officer Dass' wrist causing it to become sprained. The available Body-Worn Camera footage shows Police Officer Dass immediately complain of the pain to his wrist after placing the belligerent individual into the police vehicle. Subsequently, while being transported to the precinct for arrest processing, the arrested individual, unprovoked and in a fit of rage, spat at Police Officer Dass.

In response to the objectionable actions of the arrested individual, Police Officer Dass muttered discourteous statements. The statements were recorded by Police Officer Dass' Body-Worn Camera, but were said in such a low tone of voice that they were barely audible. Nonetheless, the statements were discourteous and fall short of the standard to which uniformed members of the Department are held during their interactions with the public. As such, an appropriate disciplinary penalty will be imposed for the discourteous statements made by Police Officer Dass.

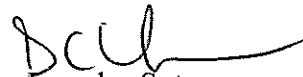
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It also must be noted that the CCRB sought to penalize Police Officer Dass for uttering what it deemed to be *both* an offensive and a discourteous statement. However, the two statements are virtually indistinguishable from one another, and, while both are discourteous, neither rises to the level of an offensive statement based on the totality of the circumstances. The ends of progressive discipline are best met if the alleged misconduct is appropriately classified and correctly penalized.

Therefore, the Police Commissioner intends to penalize Police Officer Dass one (1) vacation day for the discourteous statements made.

Yours truly,

A handwritten signature in black ink, appearing to read 'LSO', with a long horizontal flourish extending to the right.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John Tynan, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

May 25, 2023

The Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Rahul Dass
Disciplinary Case No.: 2021-23484

Dear Commissioner Sewell:

I am writing in response to the letter from Deputy Chief Lourdes Soto, dated May 10, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you intend to impose a lesser penalty than what CCRB recommended for Police Officer Dass. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Soto’s notification.

Deputy Chief Soto stated that after reviewing the recommendation of CCRB, you determined that the actions of Police Officer Dass do not warrant the imposition of CCRB’s proposed penalty and you intend to impose a lesser penalty of the forfeiture of one (1) vacation day. CCRB disagrees with your recommendation.

It is undisputed that Police Officer Dass used discourteous and offensive language towards § 87(2)(b) when he called her a “disgusting fucking bitch.” This is not only captured on Police Officer Dass’ Body-Worn Camera footage, but Police Officer Dass admitted to this misconduct during his CCRB interview. PO Dass made this statement in response to § 87(2)(b) spitting on him as he was angry and upset with her and was not justified in using this discourteous and offensive language. In this situation, Police Officer Dass had a duty to maintain a courteous, professional, and respectful demeanor regardless of § 87(2)(b) behavior and actions.

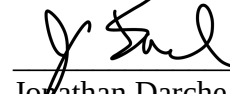
In addition, CCRB disagrees that “the two statements are virtually indistinguishable from one another, and, while both are discourteous, neither rises to the level of an offensive statement based on the totality of the circumstances.” The NYPD Disciplinary Matrix states that “Offensive language is more serious conduct than discourtesy and includes slurs based on membership in a protected class such as race, religion, ethnicity, gender, gender identity, sexual orientation, age or disability.” Police Officer Dass’ usage of the word “bitch,” is, on its face, a slur based on § 87(2)(b).

§ 87(2)(b) gender. The two statements are distinguishable and rise to the level of an offensive statement. This is further evidenced during Police Officer Dass' CCRB interview when he distinguishes between the two. Police Officer Dass initially stated that he called § 87(2)(b) a "disgusting individual," but after reviewing his BWC footage, he identified himself as the officer who called § 87(2)(b) a "disgusting fucking bitch." Hence, Police Officer Dass is guilty of Specifications One (1) and Two (2) and the negotiated penalty of the total forfeiture of eleven (11) vacation days is appropriate.

Please note that the negotiated penalty was one mandated by the Disciplinary Matrix, as CCRB took into account the totality of the circumstances during this incident and the nature of the discourteous and offensive language when choosing the mitigated penalty for each specification and running them consecutively for the total forfeiture of eleven (11) vacation days. Additionally, this negotiated penalty was accepted by Deputy Commissioner of Trials Rosemarie Maldonado during the plea conference held on August 11, 2022.

While the CCRB recognizes that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, CCRB requests that the negotiated penalty of the total forfeiture of eleven (11) vacation days be imposed for both specifications.

Respectfully submitted,



Jonathan Darche

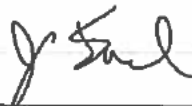
Executive Director

NYC Civilian Complaint Review Board

Cc: John Tynan, Esq.

SIXTH ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Amy Litwin, Department Advocate's Office, June 15, 2023. Contents noted. Re-negotiated plea agreement in DADS No. 2021-23484 against Police Officer Rahul Dass, Tax Registry No. 958475, implemented as per the direction of the Police Commissioner.



Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board



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TRIAL COMMISSIONER

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FIRST DEPUTY COMMISSIONER 6/27/23
DATE

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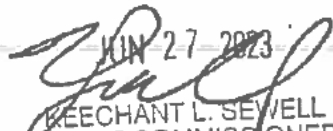
EIGHTH ENDORSEMENT

First Deputy Commissioner to Police Commissioner, June 26, 2023. Contents noted. As per your direction, enclosed is the negotiated settlement in Disciplinary Case No. 2021-23484, against Police Officer Rahul Dass, Tax #958475. Forwarded for your **APPROVAL**.


Edward A. Caban
FIRST DEPUTY COMMISSIONER

EAC/me

APPROVED


JUN 27 2023
KEECHANT L. SEWELL
POLICE COMMISSIONER